



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36308908

Date: JAN. 21, 2025

Motion on Administrative Appeals Office Decision

Form I-140, Immigrant Petition for Alien Workers (National Interest Waiver)

The Petitioner seeks employment-based second preference (EB-2) immigrant classification as a member of the professions holding an advanced degree, as well as a national interest waiver of the job offer requirement attached to this classification. *See* Immigration and Nationality Act (the Act) section 203(b)(2), 8 U.S.C. § 1153(b)(2).

The Director of the Texas Service Center denied the petition, concluding that the record did not establish the Petitioner's eligibility for a national interest waiver under the analytical framework outlined in *Matter of Dhanasar*, 26 I&N Dec. 884 (AAO 2016). We dismissed a subsequent appeal and a combined motion to reopen and reconsider. The matter is now before us again on a second combined motion to reopen and reconsider. The Petitioner bears the burden of proof to demonstrate eligibility by a preponderance of the evidence. *Matter of Chawathe*, 25 I&N Dec. 369, 375-76 (AAO 2010). Upon review, we will dismiss the combined motion.

A motion to reopen must state new facts and be supported by documentary evidence. 8 C.F.R. § 103.5(a)(2). A motion to reconsider must establish that our prior decision was based on an incorrect application of law or policy and that the decision was incorrect based on the evidence in the record of proceedings at the time of the decision. 8 C.F.R. § 103.5(a)(3). Our review on motion is limited to reviewing our latest decision. 8 C.F.R. § 103.5(a)(1)(ii). We may grant motions that satisfy these requirements and demonstrate eligibility for the requested benefit. *See Matter of Coelho*, 20 I&N Dec. 464, 473 (BIA 1992) (requiring that new evidence have the potential to change the outcome).

As stated, our review on motion is limited to examining our latest decision. General support that a motion must first overcome the most recent decision lies within the regulation at 8 C.F.R. § 103.5(a)(1)–(3) where it repeatedly discusses the underlying or latest decision, it limits the time one has to file a motion after the most recent decision, and it references jurisdiction resting with the entity who made the latest decision. Accordingly, a motion to reopen and reconsider must overcome the issues discussed within our most recent decision, not the Director's denial or our appeal dismissal.

On motion, the Petitioner submits a brief along with articles and reports discussing various topics relating to the trucking industry and the shortage of truck drivers in the United States. He generally

disagrees with our prior decisions, and asserts that his company is nationally important because the trucking industry plays an essential role in supporting supply chains in the United States. Additionally, on motion he claims that his company will address the shortage of truck drivers in the United States, support national economic security by enhancing supply chain resilience, and positively impact local communities.

Considered together, the new articles do not demonstrate the Petitioner's eligibility for a national interest waiver, nor do they evidence new facts that are relevant to the issues raised in our dismissal of the Petitioner's combined motion to reopen and reconsider. The Petitioner previously provided articles addressing the importance of the trucking industry as well as the shortage of truck drivers in the United States, and we explained that this evidence did not establish the broader implications directly attributable to his endeavor. The Petitioner has not provided any new facts establishing the national importance of the proposed endeavor, and therefore he has not provided a basis for granting a motion to reopen.

Additionally, while the Petitioner continues to assert that his proposed endeavor has national importance, he does not specifically identify an instance in which we incorrectly applied the law or USCIS policy in arriving at our latest decision. On motion, he continues to primarily rely on the importance of the trucking industry and its collective impact; however, we previously addressed those claims in both of our prior decisions. In our first appellate decision we explained that the importance of these industries did not establish the national importance of his specific endeavor. And again, in our dismissal of his first combined motion to reopen and reconsider, we acknowledged these claims, but explained that, because the Petitioner had not addressed our prior determinations regarding these claims, he did not show that we erred in dismissing his appeal. Similarly, on motion the Petitioner reiterates the same claims regarding his proposed employment and economic benefits without addressing our determination that the record does not provide sufficient support for his hiring projections, considering the claimed shortage of truck drivers in the United States. Here, beyond generally disagreeing with our conclusions, the Petitioner does not explain how our previous decision was based on an incorrect application of law or policy at the time we issued our decision. Instead, the Petitioner's contentions merely reargue facts and issues we considered in our prior decision. *See e.g., Matter of O-S-G-*, 24 I&N Dec. 56, 58 (BIA 2006) ("a motion to reconsider is not a process by which a party may submit, in essence, the same brief presented on appeal and seek reconsideration by generally alleging error in the prior Board decision").

For the reasons discussed, we conclude that the Petitioner has not established new facts relevant to our decision that would warrant reopening of the proceedings, nor has he shown that we erred as a matter of law or policy. Consequently, we have no basis for reopening or reconsideration of our decision, and the combined motions will be dismissed. 8 C.F.R. § 103.5(a)(4).

ORDER: The motion to reopen is dismissed.

FURTHER ORDER: The motion to reconsider is dismissed.